



File No.: EXP202211775

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by A.A.A. (hereinafter, the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection, dated June 16, 2023, and based on the following:

FACTS

FIRST: On June 16, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202211775. The resolution was notified to the appellant by means of the publication of the notification announcement in the Official State Gazette dated July 19, 2023, as evidenced in the file.

SECOND: On October 20, 2023, the appellant submitted a reconsideration appeal to the AEPD against the resolution indicated in the previous point, expressing their disagreement with it.

The following legal grounds apply to the above facts:

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Grounds for inadmissibility

Article 116 of the LPACAP establishes as a ground for inadmissibility of administrative appeals in its letter d) "Having exceeded the deadline for filing the appeal."

III

Calculation of the filing period

According to the provisions of Article 124 of the LPACAP: "The period for filing the reconsideration appeal shall be one month, if the act is express."

Article 119 of said law adds that: "The resolution of the appeal will either uphold in whole or in part or dismiss the claims made therein or declare its inadmissibility."

Regarding the calculation of the indicated period, it must be attended to the provisions of paragraph 4 of Article 30 of the LPACAP, which states: "If the period is set in months or years, these will be calculated from the day following that on which the notification or publication of the act in question takes place, or from the day following that on which the estimation or dismissal by administrative silence occurs.

The period will conclude on the same day on which the notification, publication, or administrative silence occurred in the month or year of expiration. If in the month of expiration there is no equivalent day to that on which the calculation begins, it will be understood that the period expires on the last day of the month."

In this case, the resolution of the Director of the Spanish Agency for Data Protection dated June 16, 2023, was notified to the appellant by means of the publication of the notification announcement in the Official State Gazette dated July 19, 2023, and the reconsideration appeal was filed on October 20, 2023.

Therefore, it can be concluded that the filing of the reconsideration appeal on the indicated date exceeds the legally established filing period, and thus the appeal should be declared inadmissible as untimely.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE INADMISSIBLE the reconsideration appeal filed by A.A.A. against the resolution of this Agency, issued on June 16, 2023, in file EXP202211775.

SECOND: TO NOTIFY this resolution to A.A.A.

Against this resolution, which concludes the administrative procedure, a contentious-administrative appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned Law.

1025-210323

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